

Infinity

SCIENCE FICTION

First Issue

Special! **THE STAR**

by **ARTHUR C. CLARKE**

NOVEMBER

35c

PDC

Eyle
**WILLIAM TENN • JAMES BLISH • ROBERT BLOCH
FORD McCORMACK • WINSTON MARKS and others**

Infinity

SCIENCE FICTION

First Issue

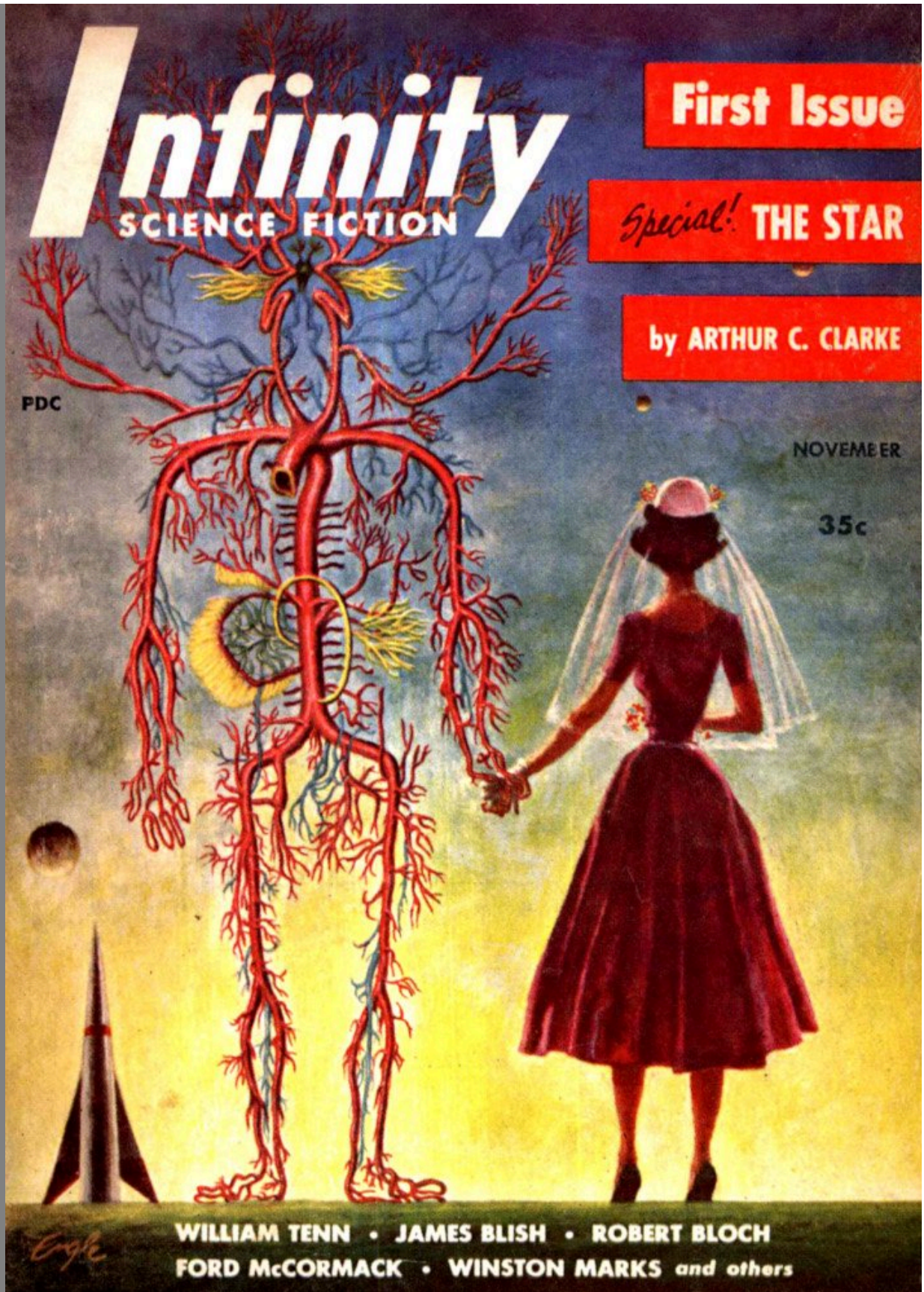
Special! **THE STAR**

by **ARTHUR C. CLARKE**

PDC

NOVEMBER

35c



Eyle
WILLIAM TENN • JAMES BLISH • ROBERT BLOCH
FORD McCORMACK • WINSTON MARKS and others

The Project Gutenberg eBook of The First

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The First

Author: Edward W. Ludwig

Illustrator: Robert Engle

Release date: February 4, 2022 [eBook #67316]

Most recently updated: October 18, 2024

Language: English

Original publication: United States: Royal Publications, Inc, 1955

Other information and formats: www.gutenberg.org/ebooks/67316

Credits: Greg Weeks, Mary Meehan and the Online Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK THE FIRST ***

THE FIRST

By EDWARD LUDWIG

*"Man will need signposts to
guide the way to infinity." That's
a quotation from—and a description
of—this inspiring story*

**[Transcriber's Note: This etext was produced from
Infinity Science Fiction, November 1955.
Extensive research did not uncover any evidence that
the U.S. copyright on this publication was renewed.]**



The city was enchanted. It was a colossal music box blaring forth a thousand chants of victory. It was a rainbow torn down from the sky and poured over the earth. It was a magic nursery through which eager-eyed children swarmed to behold a sparkling new toy.

Three spacemen, three conquerors-to-be, sat stiffly in the back seat of a blue-bannered convertible. The car moved snail-like toward the Capitol steps, escorted by a hundred bands, eight hundred flowered floats, and ten thousand marching men.

In its front seat, standing, waving to the crowd, was Captain George Everson. Everson—the legless man. Everson—the bronzed giant whose first

rocketship had exploded at take-off, and yet who had lived to walk on artificial legs, to build a second rocket, and to infect all the world with his square-jawed determination.

It was barely eight o'clock on this April morning of the year 1982, yet the onslaught against the spacemen had begun. Confetti rained on them. Breeze-filled flags dazzled them. Band music deafened them. The flow of shouting spectators dizzied them. It was a day when holiday hats and mathematicians' formulae, roasted peanuts and ancient dreams were blended in a fury of joy.

The magic wand that had enchanted the city was Everson's *Lunar Lady*. And it was like a wand—1,000 tons of it, poised on the take-off field on the outskirts of the city, its needle-point nose turned skyward and shining silver in the morning sunlight.

Tonight, at sunset, when the city was saturated with speeches and music and popcorn and prayer, the great rocket would rumble and belch flame and rise. Mankind would begin its first flight to the moon!

So it seemed that the people of all the earth were basking in joy and hope, every man, woman and child—with one exception.

Jeffrey Simon rose from his bed, awakened by the rhythm of march music outside his small apartment. He shuffled sleepily to a window. He blinked at the array of flags and bunting that lined the street.

The music became louder.

He ran a shaky, withered hand over his wizened face, brushed stringy white hair back from his forehead. His lips curved in a grim half-smile.

"It's starting," he murmured, "—the day that should have been yours."

He realized that he was talking to himself again. But although he was only fifty-six, talking aloud seemed natural to him. It not only eased his loneliness; it also helped him to clarify his muddled thoughts.

"Today is your last chance. Not tomorrow or the next day. It *has* to be today."

The thump-thump of a base drum was like a gigantic heart-beat shaking all the land. The blare of trumpets was a victory song, strong enough to live in the mind of a man forever, strong enough to silence forever the voices of fear and loneliness that might haunt a spaceman.

"That's the music," Jeffrey Simon muttered, "that should have been yours."

A crimson-lettered banner said: EVERSON—THE FIRST.

What a mockery those words were! It was like worshiping an evil, false-faced goddess. The illusion should and must be destroyed.

He jerked erect. He must move quickly. He must put an end to this cosmic lie.

He dressed in a freshly-cleaned, single-breasted tweed suit. His tie was hastily knotted. There was no time for breakfast.

He strode to a drawer of his bureau, yanked it open, dug away a layer of under-clothing. He smiled as he beheld two objects.

His hands moved gently. His hands were like those of a florist arranging a garland of delicate blossoms. They were like the hands of a surgeon fearful of a fatal error. They were like the hands of a father upon his first-born.

He picked up the stone.

It was a bright, phosphorescent green, mottled with flecks of gold and no larger than an apple. Its glow seemed to fill all the room. Jeffrey remembered the cave at the base of Luna's Mount Pico from where he'd chipped it. The cave's eerie glow had almost seemed alive, quivering and pulsing with alien energy. Jeffrey, in his space-suit and half blinded, had staggered when he left with his specimen.

Next, he touched the photograph.

It was a moment of eternity captured long ago and still imprisoned in a wrinkled, yellowed paper. On it was the rocket, the *Marilyn*, which had been his home for fifteen years. Behind it, on a rise in the pock-marked Lunar terrain, was one of the launching stations which had never been used. In the background loomed the nightmarish Tenerife Mountains. And hovering above all in a sky of black velvet was a shining, blue-green ball—the earth.

Carefully, Jeffrey placed the photograph in a large envelope and slid it, with the stone, into his coat's inner pocket.

"They'll believe now," he murmured. "They ignored the letters, the telegrams. Now, with proof, they'll believe. They'll learn what is a lie and what is the truth. They'll learn who was *really* first."

A moment later he was on the street, struggling to filter through the crowd. For a few seconds he knew terror, because those in the crowd had surrendered all individuality. They had become a single, automatic entity, hypnotized by the tapestry of color and sound and responding to it alone. The crowd closed in upon him like the tentacles of an octopus, imprisoning him and thrusting him forward and back.

At last, panting, he broke free. He found a side street—one that would not be invaded by the parade. He walked swiftly. Then, although breath came hard, he ran.

Carved above the entrance of the huge stone building were the words:

UNITED STATES BUREAU
OF INTERPLANETARY
RESEARCH

Jeffrey stopped to catch his breath. How many of his letters had passed over that mountainous series of steps? How many, like those to Congress, to the Pentagon and to the President, had been crumpled, torn, tossed into waste baskets?

It didn't matter. He was doing now what he should have done a month ago—appearing in person with his proof.

He lumbered up the stone steps. His watery eyes widened at the bright murals in the vast foyer—murals of stars and planets, of rockets and spacemen, all centered about a gigantic and symbolic pair of human hands reaching upward.

Jeffrey squinted down the white, clean, cool halls.

So this was where spacemen of today lived, studied, worked, experimented. How different from that battered quonset hut in the hot, wind-burnt New Mexican desert.

"May I help you, sir?"

The voice snapped him back to reality.

He turned and saw a young man seated at a desk a short distance away. The man was sleepy-eyed, with black, close-cropped hair and ears that were too big. On the desk was a placard that said: *Officer of The Day: Lieutenant Andrews.*

The lieutenant drummed his fingers on the desk. "Speak up, old timer. What is it? If you want information on today's flight, just help yourself to these folders."

"No, no." Jeffrey walked up to the desk, brushed away the folders. "I—I want to see someone in authority. There's something I have to tell them."

"I'm in charge. Go ahead and tell it to me."

Jeffrey trembled. "It's going to sound crazy. You might not believe—"

"Go ahead and tell it. Then I'll decide whether to believe."

Confidence came to Jeffrey. He touched the reassuring bulge of the stone and the photograph in his pocket. Then he began to speak.

"Well, you've read how things were back in 1957. The world cut in half. Communism on one side, Democracy on the other. Both sides threatening the other. Both building faster and faster jets and bigger and bigger H-bombs. People felt like they were walking on tight-ropes.

"In August of '57 the Russians announced that they had the biggest H-bomb ever made. The President and his cabinet and the top brass met. The Army Chief of Staff was already on record in saying there was no perfect defense against an H-bomb attack. Radar nets, anti-aircraft and fighter planes would take care of a lot of attacking bombers or missiles, but some would probably get through. There had to be something else—something as daring as the first A-bomb project back in World War II.

"The answer was obvious: a *manned* artificial satellite."

The lieutenant stiffened. He made a sucking noise with his lips.

"Yep," Jeffrey continued, "a manned satellite. Our scientists had developed the tiny, unmanned 'mouse.' A full-scale version was tougher—but possible.

"And a nation in control of such a satellite would watch over all the world. From its near-zero gravity it could launch guided atomic missiles to any point on the earth."

Jeffrey cleared his throat. His listener was still attentive.

"So Project Pandora began. Like the Manhattan Project, it was top secret, because we didn't want the Russians to start like crazy on their own Project. I never learned how many men were involved—probably about 100,000. But all except maybe a hundred or so thought they were working on new types of jets or fuels.

"A new town—Pandora City—sprang up in New Mexico for general research. Really top secret stuff, like the construction of our rockets, was handled in Hell Canyon, which probably still isn't on your maps. You couldn't get there except by cargo-carrying helicopter.

"I was a guided missile man transferred from Point Mugu to the Canyon. Entering that hell-hole was like being sentenced for life. We had our movies and beer, but the sun and mountains were still there. I used to look at those mountains and wonder if I dared try to escape. Then I thought of the desert on the other side. There was no escape—except through death or by finishing the damn project.

"By the fall of '58 we had our fuel. Dilute monatomic hydrogen—powerful as the guts of an H-bomb, but controllable, suitable for atomic engines. Powered with that fuel, a rocket could rip through the old seven-mile-a-second barrier like a knife cutting through tissue paper.

"Then a new question came up. Was the artificial satellite the ideal solution to our problem? Even at a height of a thousand miles, it could be visible to Russian astronomers. Russian knowledge of our secret could start off a Third World War. And, if the Russians developed their own guided missile program, the satellite might be vulnerable.

"We'd developed an alloy of rare earths for our jet tubes, so there was no reason why we couldn't hit the moon direct. A Lunar station could be camouflaged, and launching platforms for missiles could be scattered. Most important, the moon would give us utter secrecy."

Jeffrey's voice trailed. A cloud of memory seemed to drift before his vision. "And—and I guess there was something else, too. We didn't want to stop with just a satellite. We had the power to take space by the nose and pull it around like a whipped dog. The first men to leave our planet—think of those words. The first, the very first. The thought makes you a little drunk."

He smiled. "The President, his cabinet, the top brass okayed our ideas. So the moon it was!"

Lieutenant Andrews rose, his mouth a tight, white line.

"Afraid we'll have to call it a day," he muttered. "It's time for me to go off duty. Sorry."

"But—but your relief isn't here. You can't—"

"Sorry." The man's gaze avoided Jeffrey's face.

He moved swiftly, his tall body easing around the desk, then striding down the hall.

Jeffrey was like a statue, an absurd, bulging-eyed statue with right hand still raised in a climactic, melodramatic gesture.

"But I haven't finished!" he cried. "You haven't heard—"

The lieutenant marched away, oblivious to Jeffrey's pleading voice. Abruptly, his bright uniform disappeared into one of the labyrinth's many rooms.

Jeffrey was a fragile leaf mauled by winds of desperation. He dug furiously into his coat's inner pocket.

"You haven't seen my proof!" he screamed.

There was no reply save the cold, hollow, hundred-tongued echo of his own words.

Jeffrey looked down at his outstretched hands. They were holding the faded photograph and the shining stone, offering them to the silence.

Outside, the city was like a merry-go-round whirling faster and faster. Music had swelled to a dizzying crescendo. Colors were brighter in the noon sunlight. Voices were louder, prayers stronger.

"Ten to one they don't make it," said a rat-faced man. "I'll take *all* bets."

"They will not be alone," the solemn man in the black robe intoned to his congregation. "For yea, though I walk through the valley of the shadow of death...."

"Why must Daddy go up into the sky, Mama? Why?" asked the child.

"He's going to be a pioneer, dear. He's going to be one of the first to go to the moon."

"But why, Mama? Why?"

The bearded man shouted, "The wrath of God will fall upon us and upon our children and our children's children. Man was not meant—"

"We have our Marco Polo, our Columbus, our Wright Brothers and our Lindbergh. Now, by the grace of God, we have our George Everson!"

"Step right up, folks! Get your souvenir programs here! And don't forget your dark glasses for the take-off. Special today—only one dollar!"

A clock struck one.

"No," said the stiffly polite girl, "the city editor isn't in. No, our reporters are covering the flight. Sorry."

A clock struck two.

"Sorry."

Jeffrey sighed. What else was there? The Research Bureau. The Department of Defense, the Pentagon. *The Times*, *The Herald*, *The Post*. He hadn't wanted to take his story to the newspapers, but they had given him a last, futile hope. Now, even they had refused to listen.

There was still *The Mirror*. The twilight news. The love nests, the exposés, the screaming headlines that most papers were saving for the second coming

of Christ.

Jeffrey found himself walking up dark, thinly carpeted stairs, pushing a faded swinging door. Then someone was leading him forward. Sounds of clacking typewriters and rustling papers filled the air.

The photograph and the moon-stone were in his hands. He was thrusting them forward.

"This is my proof," he mumbled automatically.

For a long time his surroundings were like the terrain in a dimly remembered dream. Then hands helped him into a chair.

A deep voice grunted at him. "Okay, proof of what?"

Jeffrey blinked. His brain fought to break through the wall of weariness that enclosed it. He saw that the man before him was middle-aged, balding, small-eyed. His trace of a smile was not unpleasant.

"What's it all about, fellow?" the man asked, leaning back in his chair.

Thank you, God, thought Jeffrey, *that I have another chance.*

He began again. 1957, the H-bomb, Project Pandora. Lord, if he could only show this man the images that still hung in his memory!

But how could you capture the dizzying blackness of space, the hypnotic silver of stars, and recreate their magic in mere words? How feeble were words. They were like broken fingers trying to carry sand.

Nevertheless, the man listened. Jeffrey came to the words, "So the moon it was!" And even then the man said nothing. Jeffrey went on:

"Our first rocket was ready by the summer of '59. We named it the *Marilyn*—after Marilyn Monroe, the top glamour gal of those days. And I was in the ship's first crew.

"Our take-off wasn't like this circus today. No music, no speeches, no parades. We had a shot of brandy in the morning. We shook hands with our friends and puffed on cigarettes and the C.O. said a prayer. Then we took off."

Jeffrey weighed words and memories in his mind. "It'd take me a year to tell about how space looks and how the moon is; and how you feel when all the

things you love are in a cloud-wrapped ball 240,000 miles away. Or how it feels to see your buddies slip through the paper-thin crust that covers parts of the moon and go down into nothingness, just as if the hand of God wiped them out of the universe.

"Anyway, we hit the moon. The ship stayed long enough for us to build a dome. Then we split the crew in half. Five stayed, the rest shuttled back to Earth for more supplies. Three months later the second rocket, the *June Randy*, was ready, and life got a little easier. We began to get an occasional case of beer and mail from home. Our families thought they were writing to Pandora City. To think that those little three-cent letters would go all the way to Luna would have seemed a lunatic's dream to them.

"By the summer of '61 Project Pandora was completed. We had two domes and four launching stations, each a hundred miles apart. The missiles on the launching platforms were like those beds of nails the yogis are supposed to lie on—only a hundred times bigger. And each nail was a uranium-lithium-tritium-headed rocket.

"1961 slipped by, and '62 and '63. There were a few aborted revolutions on earth, a few moments of tension, but no war."

A veil of loneliness seemed to fall over his vision, separating him from his listener.

"Go ahead," the man prompted him.

"Well, new faces appeared in our crews. The older fellows were given memory-washes so they wouldn't start blabbing when they returned to Earth. Psychiatry was pretty primitive in those days. The treatment wasn't much more than hypnosis, creating an artificial psychic block in their minds. After a while, it seemed like men were coming and going like figures on a treadmill—but, me, I stayed on."

"You stayed on? Why?"

Jeffrey thought for an instant. "Because there were two kinds of loneliness for us. One was being on the moon, in silence and emptiness. The other was being on Earth, in the midst of life and knowing the biggest secret in the world and not being able to talk about it. And of the two kinds of loneliness, to me, the last was the worst. So I stayed on the *Marilyn*."

Jeffrey tried to keep his voice calm, his manner confident.

"Then came the Russian Revolution of '74, the rise of democracy behind the crumbling Iron Curtain. The rest of the world watched and waited. We kept those launching platforms ready—just in case. But by '76, there was no doubt about it. Communism was over and done. The world was at peace.

"And with the arrival of peace, man's energies had to be directed into new channels. Till now, the government had quietly discouraged any talk about space flight. But now man craved adventure. Newspapers and public opinion began to beat the drum for that first flight to the moon."

He chuckled softly. "The President must have been tearing his hair out. What the hell was he going to do with Project Pandora? The Russians mustn't know that for fifteen years our missiles had been ready to blast them to eternity. The old hates had been buried. They couldn't be allowed to rise again.

"So Project Pandora became Project Garbage. The domes and platforms were dismantled and carried back to Pandora City. The moon was the biggest garbage dump in the Solar System, but it had to be cleaned up to the last beer can and cigarette butt. It had to become virgin again, ready to receive what Earth would later call the first pioneers of space. And it was then, when discipline was low, that I smuggled out the moon-stone and the photo.

"Everybody got the memory-wash—from the President on down. I was a civilian again with a nice pension. For the first couple of years I couldn't remember a thing. I only knew I'd done secret work for the government. I'd look at my photo and stone and wonder where I got them.

"But gradually my memory came back. Maybe it was because of the photo, or maybe because I'd been on Luna and the *Marilyn* so much longer than the others.

"Last year I got mad when Everson announced plans to hit the moon. His name was in headlines every day. He was becoming a hero without even leaving the ground. And there were a hundred men whose bodies were already lost on Luna. They were the real heroes, the real pioneers. This celebration today—it's a mockery. I want the world to know the truth."

For the space of a minute the small-eyed man was silent. His fingers toyed with the stone and the photograph.

Finally he murmured, "Suppose I publish your story. How much do you want for it?"

To Jeffrey, the words were like April sunshine streaking into a cobwebbed winter attic.

"You—you want to use the story? You believe me?"

"I didn't say I believe it. I don't give a damn whether it's true or not. My job is to sell newspapers. I asked how much you want for it."

"Nothing," Jeffrey said softly.

The small-eyed man grunted. "We could flood the city with the afternoon edition. People are buying anything with a moon angle. The Russians wouldn't shout for joy, but there shouldn't be any harm done at this late date."

His eyes brightened. "We might get away with it. We've got your stone. We could demand that Everson locate the place where you got it and either prove or disprove your story. Why, that'd be good for months!"

He laughed. "What a damper we'll put on *this* celebration! We'll make the city seem like a morgue. It's a dirty, lousy trick, but by God it'll sell papers!"

Jeffrey leaned forward, squinting. "A dirty, lousy trick? What do you mean?"

"Skip it." The man's enthusiasm was rising. He was like fizzing soda in a thumb-stoppered, shaken bottle. "We got to get this story in print. Hey, Marty! Get the dicto-typer over here! I've been waiting all my life to yell stop those presses. Marty! *Stop those goddamn presses!*"

"What did you mean?" Jeffrey insisted. "How can telling people the truth be a dirty, lousy trick?"

The small-eyed man laughed again. "You don't think folks'll *like* this story, do you? You don't think they'll feel like celebrating when they read this, do you? It's a cinch they won't start cheering *you* for what you did almost twenty years ago! Say, wait'll Everson sees that moon pic plastered on my

front page. *There's an angle! A pic of Everson's expression! Hey, Marty! Get me—*"

Restlessly, Jeffrey rose and shuffled to a window. One of the city's myriad parades, like a battalion of colored ants, was streaming down the street.

The small-eyed man yelled, "Come on, let's have that story again! This time it's for publication."

Jeffrey didn't answer. Odd thoughts were stirring in deep recesses of his mind.

"Come on! Let's have that story!"

Jeffrey stared out the window, a far-away gaze in his eyes. "Do—do you suppose I was the only one who remembered? There must be others. I couldn't be the only one."

"Sure, there could be others—if your yarn is true. Maybe they've tried to tell and nobody believed 'em. Or maybe they're keeping quiet. Maybe they don't want to make dopes out of Everson and his men. Maybe they want to keep 'em heroes. Now, gimme that story!" He flicked a switch on the dicto-typer.

Words echoed in Jeffrey's brain. *Maybe they don't want to make dopes out of Everson and his men. Maybe they want to keep 'em heroes. It's a cinch they won't start cheering you for what you did almost twenty years ago.*

The world has need of heroes, he thought. There's Luna, and then there are Venus and Mars and Jupiter and all the others; and, always, there are the stars. And, between, there are miles and years of darkness and loneliness, and courage is a candle flame too easily extinguished. Mankind will need songs of daring and tales of heroes and signposts to guide the way to infinity. You can't make heroes out of men whose very names are forgotten. You can't make heroes out of tired old bones.

Jeffrey frowned as the hum of presses echoed in his ears.

The great headlines would descend upon the enchanted city like a black tidal wave. They would swirl through the streets, devour the bright color, absorb the gay sound, suck the joy into dark waters of doubt and suspicion.

The small-eyed man was shouting at him. He did not hear.

After all, Jeffrey told himself, this is for you. It's not for Everson and his men, really. It's for the pioneers, for those who dare to be first. The eyes are not on you, and the voices do not speak to you. Yet all this, really, is for you—for you were the first. Would you destroy this day that is yours?

A voice was swearing at him.

What a day it was! Why, it must be the greatest in the history of Earth. It was a day for all history books everywhere, always. It was a shame that the minutes were piling one upon the other so rapidly. How wonderful if they could be bottled and sealed like sweet perfume, to be dispensed slowly, a scent a month, a drop a year.

Hands were tugging at his arm. He shook himself free. He turned back to the desk, seized the moon-stone and the photograph, replaced them in his pocket.

Silently, head high, he strode past the naked, astonished faces.

Dusk. A silence blanketed the take-off field. The seconds hung in the air like bits of fire and ice.

Captain George Everson, the man with no legs, waved to the multitude as he entered his silver rocket.

Presently there was a sound of thunder, and the land trembled. Flame belched from the stern of the *Lunar Lady*. Slowly, the rocket began to rise. The multitude drew back, like frightened red ghosts in the fiery glare from the grumbling jets.

A greater avalanche of flame spewed from the rocket. A furnace-hot wind shrilled over the field, lashing at hair and clothing, at banner and flag.

And suddenly the *Lunar Lady* was gone. It was a needle of fire high in the twilight sky, a vanishing target for a million narrowed eyes.

A hushed, reverent murmur rose from the field.

A small girl in a pink party dress tugged at her mother's skirt.

"Look, Mommy," she whispered. "Look at that funny old man. He keeps saying, 'This is for you,' and he's crying and laughing at the same time!"

*** END OF THE PROJECT GUTENBERG EBOOK THE FIRST ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project GutenbergTM License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.